

RIGHT TO INFORMATION ACT, 2005 — STRUCTURE REFERENCE

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1. Purpose

The law was enacted by Parliament to give citizens a practical way to access information held by public authorities, with the aim of improving transparency and accountability in government functioning. It also established a Central Information Commission and State Information Commissions to oversee implementation.

2. Key Definitions

The Act defines a “public authority” broadly to include any body established under the Constitution, by an Act of Parliament or a state legislature, or substantially funded by the government. It also defines “information” expansively to cover records, documents, memos, emails, opinions, and data held in any electronic form.

3. Obligations of Public Authorities

Every public authority is required to proactively publish certain categories of information (such as its organisational structure, powers, and duties) and to appoint Public Information Officers responsible for handling citizen requests.

4. Request and Response Timelines

A citizen's request for information must normally be answered within 30 days of receipt. Where the request concerns a person's life or liberty, the response timeline is shortened to 48 hours. If the request is routed through an Assistant Public Information Officer, an additional 5 days is allowed before the 30-day clock effectively starts.

5. Appeals Mechanism

The Act provides a two-tier appeal process. A first appeal against denial or delay is made to a designated senior officer within the same public authority. If unsatisfied, the citizen may file a second appeal with the Information Commission.

6. Exemptions

Certain categories of information are exempted from disclosure, including matters affecting national security, information that would breach the privacy of an individual with no larger public interest, and information held under a fiduciary relationship, subject to the public authority's discretion to disclose if public interest outweighs the harm.

7. Penalties

An Information Commission can impose a penalty on a Public Information Officer for unreasonable delay, malafide denial, or providing incorrect or incomplete information, calculated on a per-day basis subject to a prescribed upper limit, in addition to recommending disciplinary action under applicable service rules.